

THE UNIVERSAL HOUSE OF JUSTICE

1996-07-01

To an individual believer dear bahá'í friend

1 your email message . . . requesting clarification on various aspects of the
2 subject of bahá'í wills, was received at the bahá'í world center, and we
3 have been asked to reply as follows. . . .
4 in your communication you pose five questions about bahá'í wills. These
5 will be addressed in the order set by you. The first question asks for confir-mation of
your understanding that the writing of a will is one of the laws in the kitáb-i-Aqdas which is
currently binding on the friends. in a letter

6 228-4. See no. 52, pp. 87–91.228.4

228 5

229 1

229 2

230 1996–2000 • T h e f o u r Y e a r P l a n

231 to a National Spiritual Assembly, those laws listed in the “Synopsis and
232 codification of the kitáb-i-Aqdas” but which are not binding on the friends
233 at this time were delineated, and as the entry at item iv.d.1.o “The writ-
234 ing of a testament” was not included in that letter, you are correct in your
235 understanding. A copy of the letter is enclosed for your reference.

furthermore, a memorandum dated 20 September 1994 from the re-

search department of the house of justice draws upon the writings in

236 regard to this subject and indicates the importance of every bahá'í making a
237 will (the attachment referred to is enclosed for your reference):
238 bahá'u'lláh clearly establishes the making of a will as one of his laws.

in the kitáb-i-Aqdas, paragraph 109, he instructs: “u nto everyone

239 hath been enjoined the writing of a will.” The importance of this law is not to be
underestimated, as can be seen from a careful study of the attached compilation of newly
translated extracts from Tab-lets revealed by ‘Abdu’l-b ahá. Not only is making a will a

spiritual

duty, “one of the binding laws of this mighty dispensation,” but it

240 allows the individual full discretion to specify how his or her prop-erty, including the residence, is to be disposed of, and it is conducive to unity and agreement. failure to draw up a will is considered by

‘Abdu’l-b ahá as “disobedience” to the command of bahá’u’lláh and

241 as “non-fulfillment of the divine obligation,” and it leads to the divi-sion of the individual’s property according to provisions of the laws

242 of inheritance.

243 it is worth noting that the bahá’í laws of inheritance apply only when the
244 individual dies without making a will. indeed, one of ‘Abdu’l-b ahá’s Tablets
245 seems to indicate that the very provisions of the bahá’í law of intestacy are
246 intended as an incentive to individuals not to neglect the duty of making a
247 will early in life.

248 your second question also focuses on the writing of a will being a require-
249 ment; we believe that the above-quoted text sufficiently addresses that issue.

250 your third and fourth questions concern the “spiritual” portion of a bahá’í
251 will, that is, that portion of a believer’s will which is a statement of faith,

252 229-1. muhj, no. 147 .229.3

229 3a

229 4

229 5

229 6

230 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

231 50rather than a statement about the material or, to use your word, “ordinary”

232 aspects of a will, such as distribution of one’s possessions and provision for

233 the upbringing of one’s children. it would seem that your understanding

234 that the individual believer should draft the “spiritual” portion of his or

235 her will, rather than asking a lawyer to do so, is in keeping with the same paragraph of the kitáb-i-Aqdas referred to earlier, paragraph 109, which

236 provides guidance as to the “spiritual” content and, additionally, makes a specification regarding how the individual should head the document:

unto everyone hath been enjoined the writing of a will. The testator should head this document with the adornment of the most great Name, bear witness therein unto the oneness of god in the dayspring

of his revelation, and make mention, as he may wish, of that which

237 is praiseworthy, so that it may be a testimony for him in the kingdoms of revelation and creation and a treasure with his lord, the Supreme

238 protector, the faithful.

239 Note 137 in "The kitáb-i-Aqdas" adds clarification of the reference in

240 this passage to the most great Name:

As explained in note 33, the greatest Name of god can take various

forms, all based on the word "b ahá." The bahá'ís in the east have

241 implemented this injunction of the Aqdas by heading their wills with such phrases as "o Thou glory of the All-glorious," "in the name of

242 god, the All-glorious" or "he is the All-glorious" and the like.

243 Aside from these prerequisites stated in the kitáb-i-Aqdas, the friends

244 are free to formulate the provisions of their wills as they please, and should

245 compose their wills according to their own wishes.

246 your fifth question centers on the provision for buqúqu'lláh in bahá'í

247 wills. your understanding that the obligation to pay buqúqu'lláh arises dur-

248 ing one's lifetime and is normally to be carried out with lifetime giving is correct, although at the same time it is true that there may be cases where a

249 believer dies without having made provision in his or her will for payment of the unpaid portion of buqúqu'lláh, if any. The event of death does

250 not remove from a believer the obligation to pay buqúqu'lláh. whatever

251 portion is due to be paid is therefore a debt due from the believer's estate at the time of his or her death. The cost of the funeral and burial, the pay-229.6a

229 7

229 7a

229 8

229 9

230 1996–2000 • The Four Year Plan

231 51ment of the debts of the deceased, and the payment of whatever portion

232 of ḥuqúqu'lláh remains due are prior charges on the estate which must be
233 met before arriving at the amount of the property which has to be divided in
accordance with the provisions of the law of inheritance. Thus, whether or not a person
makes a will or, having made a will, whether he or she makes provision in it for the payment
of ḥuqúqu'lláh, the ḥuqúqu'lláh should be
234 paid, like all debts, before the rest of the estate is divided.
235 in light of this, it is certainly advisable for a believer to make the neces-
236 sary arrangements for payment of ḥuqúqu'lláh prior to his or her death, in
237 order to avoid complications or confusions which could arise. it should be
238 noted that the question of a legal wording to include provision in a will for the
payment of ḥuqúqu'lláh after a believer has died is dependent upon so
239 many factors, that it would be preferable to seek legal advice so that wording
240 which is appropriate and in accordance with the laws governing inheritance
241 can be used. obviously, unless the believer leaves a clear accounting of his
242 or her property and payment of ḥuqúqu'lláh to date, if any, it will not be
243 possible for anyone to calculate accurately what remains to be paid at the
244 time of death. while the application of the principles involved in payment
245 of ḥuqúqu'lláh may well require subsidiary legislation by the house of jus-
246 tice in the future, at the present time it falls to the executor or administrator
247 of an estate to apply them to the extent possible, using his or her best judg-
248 ment and taking into account the information available. finally, while the
249 payment of ḥuqúqu'lláh is each individual's own responsibility, a believer
250 may be referred to the nearest representative of the T rustee of ḥuqúqu'lláh,
251 who could advise him or her in the light of any specific circumstances.

252 229-2

253 we hope that the foregoing will be of assistance to you in clarifying and
254 strengthening your understanding of the relevant issues involved in the subject of
bahá'í wills. your efforts to aid the friends in recognizing the im-
255 portance of this document, and particularly in grasping its spiritual signifi-
256 cance, are commended. be assured of the prayers of the house of justice in
257 the holy Shrines that your endeavors may attract bounteous confirmations
258 from the concourse on h igh.

259 with loving b ahá'í greetings,

Department of tHe secretariat

260 229-2. Note that in paragraphs 9 and 10, any action taken by an executor should be
within the bounds of civil law.229.10

229 11

230 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

231 52EXTRACTS FROM FOUR TABLETS BY 'ABDU'L-BAHÁ

Concerning the Question of Inheritance

232 o ye the relatives of that servant of g od!

give thanks unto god that ye have been successful in distributing the

233 inheritance in the manner laid down by him. This is the first time in this

234 great cycle that an inheritance hath been so distributed. god willing, all

235 will follow your example in carrying this law into effect.

236 in this connection, it should be noted that the question of the will is of

237 extreme importance: everyone should devote the most serious attention to

238 drawing up a will, so that there should be no one who doth not have a will.

239 This is one of the binding laws of this mighty dispensation. we ask god

240 to bestow a blessing upon your affairs so that they may prosper abundantly.

241 upon you be greeting and praise.

[1]

242 As for the question of inheritance which is occasioning perplexity: in

243 truth, one is entirely free during his lifetime to make provision in his will for the
division and distribution of his property amongst his heirs in whatso-

244 ever manner he seeth fit, in order that his wishes may then be implemented after he
hath passed away. The writing of a will is obligatory upon everyone; everyone, that is, must
in his lifetime draw up a will that is firm, sound,

245 and clear in its provisions; seal and hide it; and guard it in a very safe place.

246 in drawing up his will the testator enjoyeth full discretion to dispose of his

247 property as he seeth fit; his will is a binding instrument, having precedence

248 over any other provision, and no one hath the power to either modify or

249 change it. under these conditions, should he bequeath his whole property

250 to his children, he is but acting within his rights. in the event, however, of
251 disobedience to this command, of failure to draw up a will, and of non-
252 fulfillment of the divine obligation; likewise in the event of disappearance
253 of the will itself, the testator's property will be divided up according to the
designated shares.

in truth, the wisdom of this perspicuous and most mighty ordinance

is that no one should draw breath without a will. observe how, in the

254 absence of a will, the inheritance in its entirety is divided up, distributed and
dispersed contrary to the wishes of the deceased; what difficulties and
255 disagreements are thus engendered! The will, however, is the settler of every
256 dispute, and the cause of ease for all, for in it the testator disposeth of his property in
whatsoever manner he desireth. how agreeable it is for the 229.12

229 13

229 14

229 15

229 16

229 17

230 1996–2000 • T h e f o u r Y e a r P l a n

231 5estate in its entirety to be disposed of in accordance with the testator's will

232 and pleasure! observe ye how many people during their lifetime are fearful

233 about what will happen when they pass away. Now, with this divine
com-mandment—the obligation and religious duty of drawing up a will before one's
passing—all these difficulties are resolved.

[2]

234 As regards the holy verse, the intention of the reference to 'male, not

235 female,' is the firstborn son, for in all the divine dispensations the first-

236 born son hath enjoyed a special distinction. refer ye to the Torah and the

237 gospel, and likewise to the traditions related from aforetime. read ye the

238 story of esau, jacob and the sons of isaac in the Torah, that it may become

239 apparent that in all the divine d ispensations the eldest son hath been given

240 extraordinary distinctions. even the station of prophethood hath been his

241 birthright, let alone the vanities of this world. even the just laws current

242 amongst civilized states and peoples have also accorded to the firstborn son a special
distinction.

243 Today the english state claimeth to be the most enlightened in the world.

244 Among the characteristics of the english people is that they restrict the prop-

245 erty in its entirety to the firstborn son. Their reasoning in this is that when an
accumulation of wealth is divided up it is dispersed and lost. A certain

246 individual, for instance, amasseth with untold pains a considerable fortune;

247 then, upon his death, his fortune is divided up, and this division causeth it to be
dispersed and scattered to the winds. if, however, it be restricted to the

248 firstborn son, it is preserved intact, and he careth for others. for this reason

249 there are at present among the english people many households in which,

250 for four or five centuries, the family fortune hath remained intact without having
been distributed and dispersed.

251 our intention in this is not at all that it is commendable and praisewor-

252 thy to restrict the inheritance to the firstborn son. our intention is rather to

253 show that in the laws of civilized countries the firstborn son hath likewise been
accorded a special distinction. by 'firstborn son' is intended the eldest

254 of the surviving male children. The aim of assigning the residence exclu-sively to him
is that at least the home of the deceased may be preserved intact, so that whoever among his
family should either reside or visit there

255 may be put in mind of him, and seek god's pardon and forgiveness for him.

256 All these matters, however, are of secondary importance. That which is

257 of primary and fundamental importance, and constituteth, by the express 229.18

229 19

229 20

229 21

230 m e S S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

231 5pronouncement of the holy text, a divinely established obligation, is the

232 making of a will. everyone must in his lifetime draw up a will, and dispose

233 of his property in whatsoever manner he deemeth fit, while having due regard for the
need to observe justice and equity. under these conditions,

234 there will be no one who hath not made a will, and inheritance will thus be dealt with
according to the will of the deceased. The said provisions are ap-

235 plicable only when someone dies without having made a will. The testator,

236 then, is free to bequeath the residence to whomsoever he wisheth; or, if he desireth,
he may devise it to all his heirs jointly. No room hath now been left for misunderstanding,
and ‘Abdu’l-b ahá hath elucidated the intention of

237 the divine law. let whomsoever wisheth turn towards it; whosoever wisheth
238 not will turn away from it. in any case, our function is to elucidate the law
239 of god, and to explain the meaning of the compendious verses.

[3]

240 The residence is under all conditions the property of the firstborn son,
241 irrespective of whether or not the deceased should have left behind him
242 other property as well. The firstborn son receiveth, moreover, his share of
243 the remainder of the estate. This is that which god hath prescribed. The
244 testator is, however, at liberty while still alive to dispose of his property in
whatsoever manner he seeth fit. likewise, the firstborn son must himself, for
245 the sake of god, take into consideration the other heirs, and be just and fair
246 to them. in truth, it is obligatory for everyone, by the express requirement
247 of the divine text, to draw up a will, so that it may be implemented after he
248 hath passed away. This, verily, is the perspicuous truth. if, god forbid, he
249 disobeyeth the divine command—faileth, that is, to draw up a will—then
250 his estate must be divided up in the stipulated manner.

[4]229.22

251 1996–2000 • T h e f o u r Y e a r P l a n
252 55230

Maturation of Individuals and Institutions

[signed: The Universal House of Justice]